

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0000673

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ASHLEY SHAH

vs.

DEFENDANT: NITIN SHAH, ET AL

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM
2) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM
3) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Ashley Shah (“Plaintiff”) file a motion to compel responses to Plaintiff’s Form Interrogatories, Set Two, and Plaintiff’s Supplemental Request for Production of Documents, and Supplemental Interrogatories. Plaintiff also filed a motion to deem Requests for Admission admitted. Plaintiff also requests sanctions in the amount of \$3,660. Defendant was served with notice of these motions, including the Court’s notice of a continuance from August 7, 2026 to August 26, 2026. No opposition was filed.

A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motions in light of the non-opposition. However, in light of the non-opposition, the Court deems 6 hours of time to be reasonable instead of 8 hours. Sanctions are therefore ordered in the amount of \$2,700 to be paid within 30 days of service of this order. Failure to comply with this order and any previous orders may lead to further sanctions in this matter.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in

accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0004568

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JAVIER ALVARADO vs. DEFENDANT: STAYPINEAPPLE HOTELS INC., ET AL.	
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NATURE OF PROCEEDINGS: 1) MOTION – ATTORNEY’S FEES
2) MOTION – OTHER: APPROVAL FOR CLASS ACTION SETTLEMENT

RULING

The Court grants Plaintiff’s unopposed motion for attorney’s fees in the amount of \$150,000 and reimbursement of \$12,876 in costs. The amount of time expended in litigating this case is approximately 271.3 total hours and the fee amount represents 80% of counsel’s lodestar before counting additional time required to oversee distribution, attend the Court’s hearing and complete settlement. The Court therefore, finds the amount requested to be reasonable.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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